

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 COMMITTEE SUBSTITUTE
5 FOR
6 HOUSE BILL NO. 4326

By: Moore and **Archer** of the
House

and

Seifried and **Bullard** of the
Senate

11 COMMITTEE SUBSTITUTE

12 An Act relating to the Oklahoma Higher Learning
13 Access Program; amending 70 O.S. 2021, Section 2603,
14 as last amended by Section 1, Chapter 485, O.S.L.
15 2025 (70 O.S. Supp. 2025, Section 2603), which
16 relates to eligibility requirements; adding
17 technology center school education to eligibility;
18 updating references; expanding eligibility for
19 students in the court-ordered custody of a private
20 nonprofit child-placing agency or a federally
21 recognized Indian tribe during certain time; defining
22 who a parent is for a child of a certified teacher;
23 amending 70 O.S. 2021, Section 2605, as last amended
24 by Section 2, Chapter 485, O.S.L. 2025 (70 O.S. Supp.
2025, Section 2605), which relates to student
agreements; updating references; expanding
eligibility for students in the court-ordered custody
of a private nonprofit child-placing agency or a
federally recognized Indian tribe during certain
time; removing income requirement for student in the
custody of the Oklahoma Department of Human Services,
in the court-ordered custody of a private nonprofit
child-placing agency or a federally recognized Indian
tribe during certain time; requiring Oklahoma State
Regents for Higher Education verify standard or
alternative certificate is in a classroom subject;

1 expanding definition of certified teacher; clarifying
2 computation of employment for purposes of
3 eligibility; requiring standard or alternative
4 certification be in a classroom subject as determined
5 by the State Regents; clarifying effect of service as
6 an emergency or provisionally certified teacher; and
7 providing an effective date.

8 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

9 SECTION 1. AMENDATORY 70 O.S. 2021, Section 2603, as
10 last amended by Section 1, Chapter 485, O.S.L. 2025 (70 O.S. Supp.
11 2025, Section 2603), is amended to read as follows:

12 Section 2603. A. Except as otherwise provided for in
13 subsection B of this section and elsewhere in this section, to be
14 eligible to participate in the Oklahoma Higher Learning Access
15 Program and to qualify for an award which includes payment of an
16 amount equivalent to resident tuition or other tuition pursuant to
17 Section 2604 of this title for the first semester or other academic
18 unit of postsecondary enrollment, a student shall:

19 1. Be a resident of this state or be enrolled in a school
20 district located in this state that serves students who reside in
21 both this state and an adjacent state pursuant to a contract as
22 authorized in Section 5-117.1 of this title;

23 2. Be a United States citizen or lawfully present in the United
24 States. A student who is not a United States citizen or lawfully
present in the United States shall not be eligible to participate in

1 the Oklahoma Higher Learning Access Program and to qualify for an
2 award notwithstanding the provisions of Section 3242 of this title.
3 The provisions of this paragraph shall not apply to any student who
4 was enrolled in the Oklahoma Higher Learning Access Program prior to
5 the end of the 2006-2007 school year;

6 3. Have a record of satisfactory compliance with agreements
7 executed pursuant to Section 2605 of this title;

8 4. a. Have graduated within the previous three (3) years
9 from a high school accredited by the State Board of
10 Education or the Oklahoma School of Science and
11 Mathematics with a minimum 2.5 cumulative grade point
12 average on a 4.0 scale for all work attempted in
13 grades nine through twelve,

14 b. Have graduated within the previous three (3) years
15 from a high school not accredited by the State Board
16 of Education with a minimum 2.5 cumulative grade point
17 average on a 4.0 scale for all work attempted in
18 grades nine through twelve and have achieved a
19 composite score of 22 or higher on the ACT test, or

20 c. Have satisfactorily completed within the previous
21 three (3) years an educational program that was
22 provided through a means other than a public or
23 private school and have achieved a composite score of
24 22 or higher on the ACT test;

1 5. Have completed the curricular requirements for admission to
2 an institution within The Oklahoma State System of Higher Education
3 or have completed the core curriculum and be seeking admission to a
4 technology center school governed by the State Board of Career and
5 Technology Education. Students shall also have attained a 2.5 grade
6 point average in the ~~core~~ Oklahoma's Promise required curriculum
7 courses. Students who attended a high school which did not offer
8 all the ~~core~~ Oklahoma's Promise required curriculum courses or
9 students who were educated by other means and were not offered all
10 the ~~core~~ Oklahoma's Promise required curriculum courses shall be
11 allowed to satisfy this curriculum requirement by participating in a
12 program approved by the Oklahoma State Regents for Higher Education
13 for remediation of high school curricular deficiencies;

14 6. Have satisfied admission standards as determined by the
15 Oklahoma State Regents for Higher Education for first-time-entering
16 students for the appropriate type of institution, or, if attending a
17 private institution, have satisfied admission standards as
18 determined by the private institution. No student participating in
19 the Oklahoma Higher Learning Access Program shall be admitted into
20 an institution of higher education by special admission standards;

21 7. Have secured admission to, and enrolled in, an institution
22 which is a member of The Oklahoma State System of Higher Education,
23 a postsecondary vocational-technical program offered by a technology
24 center school that meets the requirements to be eligible for federal

1 student financial aid, or a private institution of higher learning
2 located within this state and accredited pursuant to Section 4103 of
3 this title; and

4 8. a. Have established financial need according to the
5 provisions of subsection D of Section 2605 of this
6 title and standards and provisions promulgated by the
7 Oklahoma State Regents for Higher Education,

8 b. If the student was adopted between birth and twelve
9 (12) years of age while in the permanent custody of
10 the Oklahoma Department of Human Services, in the
11 court-ordered custody of a ~~licensed~~ private nonprofit
12 child-placing agency licensed by the Oklahoma
13 Department of Human Services, or federally recognized
14 Indian tribe, as defined by the federal Indian Child
15 Welfare Act of 1978, have established financial need
16 according to the provisions of paragraph 1 of
17 subsection E of Section 2605 of this title and
18 standards and provisions promulgated by the Oklahoma
19 State Regents for Higher Education,

20 c. If the student was adopted between thirteen (13) and
21 seventeen (17) years of age while in the permanent
22 custody of the Oklahoma Department of Human Services,
23 in the court-ordered custody of a ~~licensed~~ private
24 nonprofit child-placing agency licensed by the

1 Oklahoma Department of Human Services, or federally
2 recognized Indian tribe, as defined by the federal
3 Indian Child Welfare Act of 1978, have established
4 financial need according to the provisions of
5 paragraph 2 of subsection E of Section 2605 of this
6 title and standards and provisions promulgated by the
7 Oklahoma State Regents for Higher Education,

- 8 d. ~~If the student was placed~~ Was in the custody of the
9 Oklahoma Department of Human Services, in the court-
10 ordered custody of a private nonprofit child-placing
11 agency licensed by the Oklahoma Department of Human
12 Services, or federally recognized Indian tribe, as
13 defined by the federal Indian Child Welfare Act of
14 1978, at any time during the eighth, ninth, tenth, or
15 eleventh grade and enrolls in the program no later
16 than his or her official date of high school
17 graduation, ~~have established financial need according~~
18 ~~to the provisions of paragraph 3 of subsection E of~~
19 ~~Section 2605 of this title and~~ any additional
20 requirements according to the standards and provisions
21 promulgated by the Oklahoma State Regents for Higher
22 Education, or
- 23 e. If the student is the child of a certified ~~classroom~~
24 teacher and meets the provisions of paragraph 5 of

1 subsection E of Section 2605 of this title. For the
2 purposes of this paragraph, ~~"certified classroom~~
3 ~~teacher"~~ "certified teacher" shall have the same
4 meaning as provided in subparagraph d of paragraph 5
5 of subsection E of Section 2605 of this title. A
6 certified teacher shall be considered the parent of a
7 student if the certified teacher is the natural or
8 adoptive parent or the permanent legal guardian of the
9 student.

10 B. 1. A student shall be eligible to participate in the
11 Oklahoma Higher Learning Access Program and to qualify for an award
12 which includes payment of an amount equivalent to resident tuition
13 or other tuition pursuant to Section 2604 of this title for the
14 first semester or other academic unit of postsecondary enrollment if
15 the student meets all of the following criteria:

16 a. is a child of any person killed after January 1, 2000,
17 in the line of duty in any branch of the United States
18 Armed Forces or who died after January 1, 2000, as a
19 result of an injury sustained while in the line of
20 duty in any branch of the United States Armed Forces
21 and the person who was killed or died filed an
22 individual or joint Oklahoma income tax return for the
23 tax year prior to the year during which the person was
24 killed or died,

- 1 b. is a resident of this state or is enrolled in a school
2 district located in this state that serves students
3 who reside in both this state and an adjacent state
4 pursuant to a contract as authorized in Section 5-
5 117.1 of this title,
- 6 c. enrolls in an institution within The Oklahoma State
7 System of Higher Education prior to reaching the age
8 of twenty-one (21),
- 9 d. has satisfied admission standards as determined by the
10 Oklahoma State Regents for Higher Education for first-
11 time-entering students for the appropriate type of
12 institution, or, if attending a private institution,
13 has satisfied admission standards as determined by the
14 private institution. No student participating in the
15 Oklahoma Higher Learning Access Program shall be
16 admitted into an institution of higher education by
17 special admission standards,
- 18 e. has secured admission to, and enrolled in, an
19 institution which is a member of The Oklahoma State
20 System of Higher Education, a postsecondary
21 vocational-technical program offered by a technology
22 center school that meets the requirements to be
23 eligible for federal student financial aid, or a
24 private institution of higher learning located within

1 this state and accredited pursuant to Section 4103 of
2 this title, and

3 f. executes an agreement pursuant to subsection C of
4 Section 2605 of this title.

5 2. A student who is eligible to participate in the program
6 pursuant to this subsection shall not be required to meet the
7 eligibility requirements set forth in subsection A of this section.

8 C. To retain eligibility while pursuing the program of higher
9 learning in which enrolled, the student shall:

10 1. Meet the requirements for retention and degree completion as
11 established by the institution in which the student is enrolled;

12 2. Maintain good academic standing and satisfactory academic
13 progress according to standards of the Oklahoma State Regents for
14 Higher Education;

15 3. Maintain satisfactory academic progress as required for
16 eligibility for federal Title IV student financial aid programs.
17 The provisions of this paragraph shall become effective for the
18 2012-2013 school year;

19 4. Comply with the standards related to maintenance of
20 eligibility as promulgated by the Oklahoma State Regents for Higher
21 Education; and

22 5. Refrain from conduct that leads to expulsion or suspension
23 of more than one semester from an institution of higher education.

24 A student who violates the provisions of this paragraph shall

1 permanently lose eligibility for program benefits. The provisions
2 of this paragraph shall become effective January 1, 2008.

3 D. The Oklahoma State Regents for Higher Education and the
4 State Board of Career and Technology Education shall promulgate
5 rules relating to maintenance of eligibility under the Oklahoma
6 Higher Learning Access Act by a student.

7 E. It is the intent of the Legislature that students in the
8 ninth grade for the 1992-93 school year who are determined to be
9 eligible Oklahoma Higher Learning Access students pursuant to the
10 Oklahoma Higher Learning Access Act shall be the first students
11 eligible for benefits from the Oklahoma Higher Learning Access Trust
12 Fund.

13 F. The Oklahoma State Regents for Higher Education are
14 authorized to study, develop, and propose criteria for determining
15 award eligibility based upon the completion of seven semesters of
16 high school coursework by a student.

17 SECTION 2. AMENDATORY 70 O.S. 2021, Section 2605, as
18 last amended by Section 2, Chapter 485, O.S.L. 2025 (70 O.S. Supp.
19 2025, Section 2605), is amended to read as follows:

20 Section 2605. A. Each school year, every fifth- through
21 eleventh-grade student in the public and private schools of this
22 state and students who are educated by other means and are in the
23 equivalent of the fifth through eleventh grade shall be apprised,
24 together with the parent, custodial parent, or guardian of the

1 student, of the opportunity for access to higher learning under the
2 Oklahoma Higher Learning Access Program. The Oklahoma State Regents
3 for Higher Education and the State Board of Education shall develop,
4 promote, and coordinate a public awareness program to be utilized in
5 making students and parents aware of the Oklahoma Higher Learning
6 Access Program.

7 B. On a form provided by the Oklahoma State Regents for Higher
8 Education, every public school district shall designate at least one
9 Oklahoma Higher Learning Access Program contact person, who shall be
10 a counselor or teacher, at each public school site in this state in
11 which eighth-, ninth-, tenth-, or eleventh-grade classes are taught.
12 When requested by the State Regents, the State Board of Education
13 shall assist the State Regents to ensure the designation of contact
14 persons. Private schools shall also designate at least one school
15 official as a contact person. For students who are educated by
16 other means, a parent or guardian or other person approved by the
17 State Regents shall be designated the contact person.

18 C. 1. Students who qualify on the basis of financial need
19 according to subsection D or E of this section or who meet the
20 eligibility qualification set forth in subparagraph d of paragraph 8
21 of subsection A of Section 2603 of this title or in subparagraph a
22 of paragraph 1 of subsection B of Section 2603 of this title no
23 later than December 31 of their twelfth-grade year or prior to
24 reaching the age of ~~seventeen (17)~~ eighteen (18) and who qualify on

1 the basis of the standards and provisions promulgated by the
2 Oklahoma State Regents for Higher Education shall be given the
3 opportunity throughout the eighth-, ninth-, tenth-, and eleventh-
4 grade years and no later than December 31 of the twelfth-grade year,
5 for students enrolled in a public or private school, or no later
6 than the date of graduation or between the ages of thirteen (13)
7 years of age and ~~seventeen (17)~~ prior to reaching eighteen (18)
8 years of age, for students who are educated by other means, to enter
9 into participation in the program by agreeing to, throughout the
10 remainder of their school years or educational program:

- 11 a. attend school or an educational program regularly and
- 12 do homework regularly,
- 13 b. refrain from substance abuse,
- 14 c. refrain from commission of crimes or delinquent acts,
- 15 d. have school work and school records reviewed by
- 16 mentors designated pursuant to the program,
- 17 e. provide information requested by the Oklahoma State
- 18 Regents for Higher Education or the State Board of
- 19 Education, and
- 20 f. participate in program activities.

21 2. Students who meet the eligibility qualification set forth in
22 subparagraph a of paragraph 1 of subsection B of Section 2603 of
23 this title after December 31 of their twelfth-grade year or after
24 reaching the age of eighteen (18) shall be given the opportunity

1 prior to reaching the age of twenty-one (21) to enter into
2 participation in the program and shall execute an agreement with
3 provisions as determined by the Oklahoma State Regents for Higher
4 Education.

5 3. The contact person shall maintain the agreements, which
6 shall be executed on forms provided by the Oklahoma State Regents
7 for Higher Education and managed according to regulations
8 promulgated by the Oklahoma State Regents for Higher Education, and
9 the contact person shall monitor compliance of the student with the
10 terms of the agreement. The Oklahoma State Regents for Higher
11 Education are authorized to process student agreements and verify
12 compliance with the agreements. Students failing to comply with the
13 terms of the agreement shall not be eligible for the awards provided
14 in Section 2604 of this title.

15 4. The Oklahoma State Regents for Higher Education may provide
16 an exception to the age limits provided for in paragraphs 1 and 2 of
17 this subsection pursuant to subsection L of this section.

18 5. Notwithstanding the provisions of Sections 5-132 and 5-132.1
19 of this title, a student who is age twenty-one (21) or older shall
20 not be eligible to enter into participation in the program.

21 D. Except as otherwise provided for in subsection E of this
22 section and except for students who qualify pursuant to subsection B
23 of Section 2603 of this title, a student shall not be found to be in
24

1 financial need for purposes of the Oklahoma Higher Learning Access
2 Program if:

3 1. Beginning with eighth-, ninth-, or tenth-grade students who
4 are enrolled in a public or private school or students between the
5 ages of thirteen (13) and fifteen (15) who are educated by other
6 means who apply for participation in the program in the 2017-2018
7 school year, the federal adjusted gross income of the student's
8 parent(s) exceeds Fifty-five Thousand Dollars (\$55,000.00) per year;

9 2. Beginning with eighth-, ninth-, tenth-, or eleventh-grade
10 students who are enrolled in a public or private school or students
11 between the ages of thirteen (13) and sixteen (16) who are educated
12 by other means who apply for participation in the program in the
13 2021-2022 school year, the federal adjusted gross income of the
14 student's parent(s) exceeds Sixty Thousand Dollars (\$60,000.00) per
15 year;

16 3. Beginning with eighth-, ninth-, tenth-, or eleventh-grade
17 students who are enrolled in a public or private school or students
18 between the ages of thirteen (13) and sixteen (16) who are educated
19 by other means who apply for participation in the program in the
20 2022-2023 school year:

21 a. the federal adjusted gross income of the student's
22 parent(s), who have two or fewer dependent children,
23 exceeds Sixty Thousand Dollars (\$60,000.00) per year,
24

b. the federal adjusted gross income of the student's parent(s), who have three or four dependent children, exceeds Seventy Thousand Dollars (\$70,000.00) per year, or

c. the federal adjusted gross income of the student's parent(s), who have five or more dependent children, exceeds Eighty Thousand Dollars (\$80,000.00) per year;

4. Beginning with eighth-, ninth-, tenth-, or eleventh-grade students or twelfth-grade students no later than December 31 of their twelfth-grade year who are enrolled in a public or private school or students between ~~the ages of~~ thirteen (13) years of age and ~~seventeen (17)~~ prior to reaching eighteen (18) years of age who are educated by other means who apply for participation in the program in the 2025-2026 school year:

a. the federal adjusted gross income of the student's parent(s), who have two or fewer dependent children, exceeds Sixty Thousand Dollars (\$60,000.00) per year,

b. the federal adjusted gross income of the student's parent(s), who have three or four dependent children, exceeds Seventy Thousand Dollars (\$70,000.00) per year, or

c. the federal adjusted gross income of the student's parent(s), who have five or more dependent children, exceeds Eighty Thousand Dollars (\$80,000.00) per year;

1 5. Beginning with the 2018-2019 academic year, prior to
2 receiving any Oklahoma Higher Learning Access Program benefit award
3 for any year during which the student is enrolled in an institution
4 which is a member of The Oklahoma State System of Higher Education,
5 a postsecondary vocational-technical program offered by a technology
6 center school that meets the requirements to be eligible for federal
7 student financial aid, or a private institution of higher learning
8 located within this state and accredited pursuant to Section 4103 of
9 this title, the federal adjusted gross income of the student's
10 parent(s) exceeds One Hundred Thousand Dollars (\$100,000.00) per
11 year.

12 The determination of financial qualification as set forth in
13 this paragraph shall be based on the income of the student, not the
14 income of the parent(s), if a student:

- 15 a. is determined to be independent of the student's
16 parents for federal financial aid purposes,
- 17 b. was in the permanent custody of the Oklahoma
18 Department of Human Services at the time the student
19 enrolled in the program, or
- 20 c. was in the court-ordered custody of a federally
21 recognized Indian tribe, as defined by the federal
22 Indian Child Welfare Act of 1978, at the time the
23 student enrolled in the program.

1 The provisions of this paragraph shall apply to any student who
2 has received an Oklahoma Higher Learning Access Program benefit
3 award after the 2017-2018 school year; and

4 6. The Oklahoma State Regents for Higher Education shall review
5 the determination of financial qualification as set forth in
6 paragraphs 1, 2, 3, and 4 of this subsection if the income from
7 taxable and nontaxable sources of the student's parent(s) includes
8 income received from nontaxable military benefits or income received
9 from the federal Social Security Administration due to the death or
10 disability of the student's parent(s). If the income from taxable
11 and nontaxable sources of the student's parent(s), excluding income
12 received from nontaxable military benefits or income received from
13 the federal Social Security Administration due to the death or
14 disability of the student's parent(s), does not exceed the
15 limitations set forth by paragraphs 1, 2, 3, and 4 of this
16 subsection, the student shall be determined to have met the
17 financial qualification set forth in paragraphs 1, 2, 3, and 4 of
18 this subsection.

19 E. 1. A student who was adopted between birth and twelve (12)
20 years of age while in the permanent custody of the Oklahoma
21 Department of Human Services, in the court-ordered custody of a
22 ~~licensed~~ private nonprofit child-placing agency licensed by the
23 Oklahoma Department of Human Services, or federally recognized
24 Indian tribe, as defined by the federal Indian Child Welfare Act of

1 1978, shall not be found to be in financial need for purposes of the
2 Oklahoma Higher Learning Access Program if at the time the student
3 begins postsecondary education and prior to receiving any Oklahoma
4 Higher Learning Access Program benefit award, the federal adjusted
5 gross income of the student's parent(s) exceeds One Hundred Fifty
6 Thousand Dollars (\$150,000.00) per year. The provisions of this
7 paragraph shall not apply to any student who has received an
8 Oklahoma Higher Learning Access Program benefit award prior to the
9 2012-2013 school year.

10 2. A student who was adopted between thirteen (13) and
11 seventeen (17) years of age while in the permanent custody of the
12 Oklahoma Department of Human Services, in the court-ordered custody
13 of a ~~licensed~~ private nonprofit child-placing agency licensed by the
14 Oklahoma Department of Human Services, or federally recognized
15 Indian tribe, as defined by the federal Indian Child Welfare Act of
16 1978, shall not be found to be in financial need for purposes of the
17 Oklahoma Higher Learning Access Program if at the time the student
18 begins postsecondary education and prior to receiving any Oklahoma
19 Higher Learning Access Program benefit award, the federal adjusted
20 gross income of the student's parent(s) exceeds Two Hundred Thousand
21 Dollars (\$200,000.00) per year. The provisions of this paragraph
22 shall not apply to any student who has received an Oklahoma Higher
23 Learning Access Program benefit award prior to the 2012-2013 school
24 year.

1 3. ~~A student who was placed in the custody of the Department of~~
2 ~~Human Services at any time during the eighth, ninth, tenth, or~~
3 ~~eleventh grade and enrolls in the program no later than his or her~~
4 ~~official date of high school graduation shall not be found to be in~~
5 ~~financial need for purposes of the Oklahoma Higher Learning Access~~
6 ~~Program if the federal adjusted gross income of the student exceeds~~
7 ~~Sixty Thousand Dollars (\$60,000.00) per year.~~ Except for students
8 who qualify pursuant to subparagraph d of paragraph 8 of subsection
9 A and subsection B of Section 2603 of this title, the determination
10 of financial qualification as set forth in this subsection shall be
11 based on the income of the student, not the income of the parent(s),
12 if the student is determined to be independent of the student's
13 parent(s) for federal financial aid purposes. A determination of
14 financial qualification shall not be required for the student who
15 meets the criteria set forth in this subsection at the time the
16 student applies for participation in the program. The provisions of
17 this paragraph shall not apply to any student who has received an
18 Oklahoma Higher Learning Access Program benefit award prior to the
19 2008-2009 school year.

20 ~~5.~~

21 4. a. A student who is the child of a certified ~~classroom~~
22 teacher at the time the student applies for
23 participation in the Oklahoma Higher Learning Access
24 Program shall not be found to be in financial need for

1 the purposes of the Oklahoma Higher Learning Access
2 Program if, beginning with eighth-, ninth-, tenth-, or
3 eleventh-grade students or twelfth-grade students no
4 later than December 31 of their twelfth-grade year
5 who are enrolled in a public or private school or
6 students between thirteen (13) years of age and
7 ~~seventeen (17)~~ prior to reaching eighteen (18) years
8 of age who are educated by other means who apply for
9 participation in the program in the 2025-2026 school
10 year, the household income of the student's parent(s)
11 is equal to or greater than seven hundred percent
12 (700%) of the federal poverty level (FPL).

- 13 b. Prior to receiving any Oklahoma Higher Learning Access
14 Program benefit award for any year during which the
15 student is enrolled in an institution that is a member
16 of The Oklahoma State System of Higher Education, a
17 postsecondary vocational-technical program offered by
18 a technology center school that meets the eligibility
19 requirements for federal student financial aid, or a
20 private institution of higher learning located within
21 this state and accredited pursuant to Section 4103 of
22 this title, the household income of the parent(s) of a
23 student who qualifies pursuant to this paragraph shall
24

1 not be equal to or greater than seven hundred percent
2 (700%) of the federal poverty level (FPL).

3 c. The Oklahoma State Regents for Higher Education shall
4 verify the full-time employment status of the
5 student's parent(s) and the current standard or
6 alternative certification in a classroom subject of
7 the parents prior to a student who qualifies pursuant
8 to this paragraph receiving any Oklahoma Higher
9 Learning Access Program benefit award.

10 d. For the purposes of this paragraph, ~~"certified~~
11 ~~classroom teacher"~~ "certified teacher" means a
12 ~~certified,~~

13 (1) full-time classroom teacher standard or
14 alternatively certified as a teacher by the State
15 Board of Education, teaches a classroom subject
16 as determined by the State Regents, and who has
17 been employed as a teacher in a public school
18 district classroom in this state for a minimum of
19 ten (10) years prior to his or her child applying
20 for participation in the program,

21 (2) full-time counselor, librarian, school nurse, or
22 athletic trainer who is standard or alternatively
23 certified as a teacher by the State Board of
24 Education if employed by a public school district

1 or a technology center school district in this
2 state and otherwise fulfills the requirements of
3 this paragraph, and

4 (3) full-time classroom teacher standard or
5 alternatively certified as a teacher by the State
6 Board of Education who is employed to teach K-12
7 public school students at a technology center
8 school district in this state if the teacher is
9 employed to teach at least one fall and one
10 spring semester class per academic year that
11 provides free public education to at least one K-
12 12 student and if the teacher otherwise fulfills
13 the requirements of this paragraph.

14 e. The certified teacher ~~is~~ shall not be required to have
15 been employed by the same public school district for
16 ten (10) consecutive years and the ten (10) years of
17 employment shall not be required to be consecutive.
18 However, the ten (10) years of employment shall have
19 occurred in the last twenty (20) years.

20 f. Certified ~~classroom~~ teacher does not mean a certified
21 teacher who is employed as a school district
22 superintendent, principal, or any other position
23 within the administration of a public school district
24 when his or her child applies for participation in the

1 program or prior to his or her child receiving any
2 Oklahoma Higher Learning Access Program benefit award.

3 g. Service as an emergency or provisional certified
4 teacher shall not qualify for the employment
5 requirements in this paragraph.

6 F. The financial qualification of a student as set forth in
7 subsections D and E of this section shall be certified by the
8 contact person or by the Oklahoma State Regents for Higher Education
9 on the agreement form provided by the Oklahoma State Regents for
10 Higher Education. The form shall be retained in the permanent
11 record of the student and a copy forwarded to the Oklahoma State
12 Regents for Higher Education.

13 G. Agreements shall be witnessed by the parent, custodial
14 parent, or guardian of the student, who shall further agree to:

15 1. Assist the student in achieving compliance with the
16 agreements;

17 2. Confer, when requested to do so, with the school contact
18 person, other school personnel, and program mentors;

19 3. Provide information requested by the Oklahoma State Regents
20 for Higher Education or the State Board of Education; and

21 4. Assist the student in completing forms and reports required
22 for program participation, making applications to institutions and
23 schools of higher learning, and filing applications for student
24 grants and scholarships.

1 H. The Oklahoma State Regents for Higher Education shall
2 promulgate rules for the determination of student compliance with
3 agreements made pursuant to this section.

4 I. The Oklahoma State Regents for Higher Education shall
5 designate personnel to coordinate tracking of program records for
6 the years when students participating in the program are still in
7 the schools or are being educated by other means, provide staff
8 development for contact persons in the schools, and provide liaison
9 with the State Board of Education and local organizations and
10 individuals participating in the program.

11 J. The school district where an Oklahoma Higher Learning Access
12 Program student is enrolled when the student begins participation in
13 the program and any subsequent school district where the student
14 enrolls shall forward information regarding participation by the
15 student in the program to a school to which the student transfers
16 upon the request of the school for the records of the student.

17 K. Students participating in the Oklahoma Higher Learning
18 Access Program shall provide their Social Security number or their
19 student identification number used by their school to the Oklahoma
20 State Regents for Higher Education. The State Regents shall keep
21 the numbers confidential and use them only for administrative
22 purposes.

23 L. The State Regents may provide an exception to the age limits
24 provided for in paragraphs 1 and 2 of subsection C of this section

1 to a student due to hardship circumstances and allow an application
2 to the Oklahoma Higher Learning Access Program for twelfth-grade
3 students enrolled in a public or private school and students who are
4 educated by other means and are in the equivalent of twelfth grade.
5 Provided, however, the exception due to hardship circumstances shall
6 not apply to:

7 1. A student enrolled in a public or private school after the
8 student's official date of high school graduation;

9 2. A student educated by other means who is age nineteen (19)
10 or older; or

11 3. Any student who is age twenty-one (21) or older.

12 The Oklahoma State Regents for Higher Education shall promulgate
13 rules to implement the provisions of this subsection.

14 SECTION 3. This act shall become effective November 1, 2026.
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16 COMMITTEE REPORT BY: COMMITTEE ON APPROPRIATIONS AND BUDGET, dated
17 03/09/2026 - DO PASS, As Amended and Coauthored.
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